

Warsaw, 26
May
2023

Decision

DKE.561.33.2022

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2023, item 775) in connection with Articles 7 and 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) based on Article 57(1)(a) and (h), Article 58(2)(b) in connection with Article 31 and Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on M.K. conducting business under the name M. based in T. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to M.K. conducting business under the name M. based in T. at ul. (...) for violating the provisions of Articles 31 and 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended), hereinafter referred to as the "Regulation 2016/679", consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failure to provide the information necessary for the President of the Personal Data Protection Office to fulfill his tasks in the proceedings with reference number DS.523.1537.2022.

Justification

Factual Background

1. A complaint was submitted to the Personal Data Protection Office by Ms. K.T., residing at (...) C. (hereinafter referred to as the "Complainant") regarding irregularities in the processing of her personal data by M.K. conducting business under the name M. based in T. at ul. (...) (hereinafter referred to as the "Entrepreneur"), consisting of disclosing her personal data to unauthorized persons.
2. The President of the Personal Data Protection Office (hereinafter referred to as the "President of UODO") in the course of the initiated administrative proceedings aimed at examining the submitted complaint (under reference number DS.523.1537.2022), by letter dated March 24, 2022 (under reference number DS.523.1537.2022), summoned the Entrepreneur to respond to the content of the complaint and to provide explanations within 7 days from the date of its delivery. In the content of the aforementioned letter, the President of UODO requested the Entrepreneur to answer four questions essential for the substantive resolution of the case under reference number DS.523.1537.2022. This letter, despite being received by the Entrepreneur on March 28, 2022, remained unanswered.
3. In connection with the above, by letter dated June 23, 2022 (under reference number DS.523.1537.2022), the President of UODO again summoned the Entrepreneur to respond to the content of the complaint and to provide explanations regarding the case under reference number DS.523.1537.2022. In the content of the letter, the President of UODO informed the Entrepreneur that a lack of a comprehensive response to the summons could result, due to the lack of cooperation and failure to provide access to personal data and information necessary for the President of UODO to fulfill his tasks, in the imposition on the Entrepreneur – in accordance with Article 83(4)(a) and Article 83(5)(e) of Regulation 2016/679 – of an administrative monetary penalty of up to EUR 20,000,000. The aforementioned letter, received by the Entrepreneur on June 30, 2022, also remained without response from his side.
4. Due to the lack of any explanations provided by the Entrepreneur, on September 2, 2022, the President of UODO sent a third letter to the Entrepreneur under reference number DS.523.1537.2022, in which he summoned the Entrepreneur to respond to the content of the complaint and to provide

explanations regarding the case under reference number DS.523.1537.2022. The letter was received by the Entrepreneur on September 6, 2022, and also remained unanswered.

5. The above circumstances of the factual background were established by the President of UODO based on official correspondence directed to the Entrepreneur, which is included in the files of the proceedings under reference number DS.523.1537.2022. This correspondence reflects, on one hand, the entirety of attempts to cooperate with the Entrepreneur and to obtain access to information necessary for the fulfillment of his tasks – that is, in this case, to examine the case under reference number DS.523.1537.2022 – and on the other hand, the lack of response from the Entrepreneur to the requests of the President of UODO.

Proceedings

6. In connection with the lack of cooperation and failure to provide access to personal data and information necessary for the President of UODO to fulfill these tasks, the President of UODO initiated ex officio the present administrative proceedings (under reference number DKE.561.33.2022) regarding the imposition of an administrative monetary penalty, due to the violation of Articles 31 and 58(1)(a) and (e) of Regulation 2016/679.

7. The Entrepreneur was informed about the initiation of the proceedings by letter dated October 31, 2022 (under reference number DKE.561.33.2022). This letter was delivered to the Entrepreneur on November 7, 2022.

amount of time provided incomplete explanations, the subsequent submissions allowed for the continuation of the proceedings.

16. In light of the above, the President of UODO finds that the violations committed by the Entrepreneur are serious, as they hinder the effective enforcement of data protection regulations and the rights of the data subjects.

17. The President of UODO, taking into account the nature and gravity of the violations, the duration of the infringement, and the fact that the Entrepreneur eventually provided explanations, decides to impose an administrative fine.

18. The amount of the fine will be determined based on the total annual worldwide turnover of the Entrepreneur from the previous financial year, as well as the specific circumstances of the case, including any mitigating factors.

19. The President of UODO will notify the Entrepreneur of the decision regarding the administrative fine, including the reasoning behind the amount determined, and the right to appeal the decision.

20. This decision is made in accordance with the provisions of the General Data Protection Regulation (GDPR) and the applicable national laws regarding data protection.

21. The Entrepreneur has the right to submit an appeal against this decision within the statutory time frame, as stipulated in the relevant legal provisions.

22. The President of UODO emphasizes the importance of compliance with data protection regulations and the necessity for all data controllers and processors to cooperate fully with supervisory authorities to ensure the protection of personal data.

23. This decision shall enter into force on the date of its delivery to the Entrepreneur.

24. The President of UODO will ensure that this decision is published in accordance with the applicable legal requirements.

25. The President of UODO will continue to monitor the situation to ensure compliance with the decision and the effective protection of personal data.

26. The President of UODO reserves the right to take further actions if necessary to enforce compliance with data protection regulations.

27. This document is issued in accordance with the legal framework governing data protection and the responsibilities of the President of UODO as the supervisory authority.

28. The President of UODO remains committed to upholding the principles of data protection and ensuring that the rights of individuals are respected and protected.
29. The President of UODO will continue to engage with stakeholders to promote awareness and understanding of data protection obligations and to foster a culture of compliance within the business community.
30. The President of UODO encourages the Entrepreneur to implement measures to prevent future violations and to enhance their data protection practices.
31. The President of UODO expresses hope for a constructive dialogue with the Entrepreneur to address any outstanding issues and to facilitate compliance with data protection laws.
32. This decision is made in the interest of protecting personal data and ensuring accountability in data processing activities.
33. The President of UODO will remain vigilant in monitoring compliance and addressing any further violations that may arise.
34. The President of UODO thanks all parties involved for their cooperation in this matter.
35. This document is signed by the President of UODO on the date indicated below.

Date: [Insert Date]

President of UODO: [Insert Name]

[Insert Signature]

****16.**** It should be emphasized that the Entrepreneur's cooperation with the President of the UODO and the provision of explanations do not exempt him from responsibility for the earlier failure to ensure access to personal data and information necessary to resolve the case DS.523.1537.2022. Therefore, the President of the UODO deemed it justified to issue a reprimand to the Entrepreneur, based on Article 58(2)(b) of Regulation 2016/679, regarding the established violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679, assuming that in light of the criteria specified in Article 83(2) of Regulation 2016/679, it will be effective and sufficient. However, it should be noted that in the event of a similar occurrence in the future, any reprimand issued by the President of the UODO against the Entrepreneur will be taken into account when assessing the grounds for the potential imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of Regulation 2016/679.

****17.**** In this factual and legal state, the President of the UODO decided as stated in the operative part of this decision.

****Instruction****

The decision is final. According to Article 53 § 1 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2023, item 259), hereinafter referred to as "p.p.s.a.", the party has the right to file a complaint to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00-193 Warsaw). A fee must be paid for the complaint, in accordance with Article 231 in connection with Article 233 of the p.p.s.a. According to Article 74 of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781) (hereinafter "u.o.d.o."), filing a complaint by the party to the administrative court suspends the execution of the decision regarding the administrative monetary penalty. In proceedings before the Provincial Administrative Court, the Party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the Party's request submitted before the initiation of the proceedings or during the proceedings. The application is free of court fees.

****Print Article****

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